

FILED BY:

TENTATIVE RULING:

The Case Management Conference is continued to January 19, 2027, at 8:30, in Department 10.

**3. 8:31 AM CASE NUMBER: MS25-0374
CASE NAME: BERT MORGAN VS. THERON "TED" TURNER
PRETRIAL CONFERENCE STATUS OF DISMISSAL**

FILED BY:

TENTATIVE RULING:

The Court has not received a status report regarding the move-out. Absent such update or a dismissal, Parties to appear.

**4. 9:00 AM CASE NUMBER: MSC16-01118
CASE NAME: YUE VS. TRIGMAX SOLUTIONS
*FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

Parties to appear.

**5. 9:00 AM CASE NUMBER: MSC16-01118
CASE NAME: YUE VS. TRIGMAX SOLUTIONS
HEARING ON ORDER TO SHOW CAUSE IN RE: DEFENSE COUNSEL FAILURE TO APPEAR ON 1/30/26**

FILED BY:

TENTATIVE RULING:

The Court has not received a supplemental filing by Counsel. Counsel ordered to appear.

Law & Motion

**6. 9:00 AM CASE NUMBER: C24-00451
CASE NAME: JAXSON JULIAN VS. MARIA CASILLAS
HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT**

FILED BY: CASILLAS, MARIA

TENTATIVE RULING:

Before the Court are defendants' demurrer and motion to strike, filed in response to the Third Amended Complaint ("TAC"). The **demurrer by defendant Maria Casillas is sustained as to the fourth and seventh causes of action, but overruled as to the eighth cause of action. The demurrer by defendant West Contra Costa Unified School District is sustained. The motion to strike is granted**

with respect to the punitive damage items, but otherwise denied.

Plaintiff has leave to file an amended complaint on or before August 3, 2026. Should plaintiff elect not to amend, the time to answer shall run from that date.

I. Factual Background as Alleged by Plaintiff

Plaintiff was a student at Shannon Elementary School until October 2023, when he obtained a transfer to another school through the Office of Administrative Hearing. (Third Amended Complaint, hereinafter “TAC,” ¶ 12.) While at Shannon Elementary, plaintiff was bullied based on his disabilities and the District failed to address the issue and to provide reasonable accommodations. (*Ibid.*) From February through April 2022, defendant Maria Casillas, a teacher at Shannon Elementary, “massaged his shoulders and back on multiple occasions.” (TAC, ¶ 13.) Plaintiff’s mother and guardian ad litem complained to the school and “nothing was done.” (*Ibid.*) District employees are mandated reporters and, as of August 2023, did not report the alleged touching. (*Ibid.*)

On February 16, 2023, another student “bullied” plaintiff and caused his body to be “sore,” necessitating a visit to Kaiser. (TAC, ¶ 14.) District was informed of the incident. (*Ibid.*) On March 15, 2023, another student “assaulted” plaintiff in class, but instead of addressing the bully, District employees “caused Plaintiff to lose services he’s entitled to under his IEP” and took away his recess. (*Ibid.*) Plaintiff’s mother was not notified. (*Ibid.*) On April 10, 2023, other children were bullying plaintiff by playing “trip Jax” and the District did nothing to protect plaintiff. (*Ibid.*) Plaintiff went to Kaiser the following day and “could not walk” from his injuries. (*Ibid.*) On April 20, 2023, plaintiff was “threatened with death” and beaten by other students, causing him to lose a tooth and have difficulty walking. (*Ibid.*) His mother followed up with the District regarding the bullying, but received no response. On May 3, 2023, he was bullied again, was told he would not get ice and to go home. (*Ibid.*) Plaintiff was diagnosed with “severe muscle strains” and the school was informed. (*Ibid.*) In May of 2023, plaintiff was “stabbed with a pencil that had to be surgically removed and was headbutted in the mouth.” (*Ibid.*)

Plaintiff has been diagnosed with certain disabilities that entitle him to coverage under the Americans with Disabilities Act. (TAC, ¶ 15.) From November 2022 to May 10, 2023, he received an IEP wherein he was to receive “intensive individual services via a paraprofessional aide.” (TAC, ¶ 16.) From November 15, 2022, to May 10, 2023, there were 20 weeks wherein the District failed to meet plaintiff’s needs as to the required minutes. During the 2022-2023 school year, plaintiff had difficulty meeting “grade-level standards,” and District did not record progress on his “decoding IEP goals.” (TAC, ¶ 17.)

On May 18, 2022, a safety plan was created for plaintiff and on May 23, 2023, an IEP plan for plaintiff was implemented to address deficits “in the area of S/L.” (TAC, ¶ 18.) No Behavior Intervention Plan (“BIP”) was included at the IEP team meeting, even though plaintiff’s mother “requested safety be discussed on August 17 and 25, 2022.” (*Ibid.*) On November 10, 2022, the District developed another IEP to address deficits in the “areas of S/L and discrepancies between cognitive ability and academic achievement.” (*Ibid.*) The safety plan was updated at this IEP meeting, but “neither a BIP nor behavior goals were included.” (*Ibid.*)

On February 27, 2023, an IEP meeting was held to amend the IEP, and the team agreed to implement a communication log and conduct a mental health assessment. (TAC, ¶18.) Decoding and word recognition goals were added to the IEP, but the District did not provide progress on the goals. (*Ibid.*) Three days prior, on February 24th, plaintiff’s mother had told the District she wanted to record

the upcoming IEP meeting, but the District did not allow this, taking the position that the request was untimely. (TAC, ¶ 19.) On February 27, 2023, plaintiff's "in-class helpers abandoned him and chose not to help a 'problem child'" and District did not respond to complaints about the helpers' failures. (TAC, ¶ 20.)

Between February 3, 2023 and October 2023, when an updated IEP was agreed upon, District "failed to timely conduct" IEP meetings, ignored plaintiff's mother's emails, and meetings were delayed or cancelled. (TAC, ¶ 21.)

II. Procedural History and Meet and Confer

Plaintiff, through his mother / Guardian Ad Litem, first brought suit against defendants, West Contra Costa Unified School District and Maria Casillas, in February of 2024. Plaintiff took the default of the District, but on a motion by the District, it was set aside by Judge Treat in December 2024. Before any answer was filed, plaintiff amended the complaint and defendants met and conferred with plaintiff. Plaintiff filed a Second Amended Complaint, to which the defendants demurred. Judge Weil partially sustained the demurrer in November 2025 after which plaintiff filed the current Third Amended Complaint.

The TAC alleges nine causes of action, including: (1) violation of the American with Disabilities Act, (2) violation of Section 504 of the Rehabilitation Act of 1973, (3) violation of Education Code § 220, (4) violation of 42 U.S.C. 1983, (5) negligence, (6) negligent supervision, hiring, and/or retention, (7) Intentional Infliction of Emotional Distress ("IIED"), (8) battery, and (9) failure to perform mandatory duty to protect student. The first, second, sixth, and ninth causes of action are alleged against the District. The fourth and eighth causes of action are alleged against Casillas. The third, fifth, and seventh causes of action are alleged against both the District and Casillas.

After meeting and conferring with plaintiff (see Declaration of Jessica D. Adair) in compliance with Code of Civil Procedure sections 430.41 (a) and 435.5 (a), District and Casillas filed the present demurrer and a motion to strike punitive damages. Plaintiff timely opposed both motions (despite defense arguments in the reply papers suggesting otherwise).

III. Demurrer

A. Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318, citations omitted.) The complaint is read as a whole and the parts in their context, considering matters which may be judicially noticed. (*Ibid.*; Code Civ. Proc. § 430.30(a).)

B. Discussion

1. Fourth C/A for Violation of Constitutional Rights (Against Casillas)

Defendant Casillas demurs to the fourth cause of action, arguing that the factual allegations are insufficient.

A cause of action pursuant to 42 U.S.C. § 1983 requires plaintiff, in order to state a cause of action under that statute, to allege that (1) some person has deprived him of a federal right and (2) that the person who has deprived him of that right acted under color of state or territorial law. (*Catsouras v. Department of California Highway Patrol* (2010) 181 Cal.App.4th 856, 890, citation

omitted; see also 2 CACI 3000 (2025).)

The allegations against Casillas continue to fail in two respects identified in the Court's previous ruling: plaintiff does not identify the *federal* right at stake (though he mentions several rights under California law), nor does he allege Casillas was acting under color of state law. Accordingly, the demurrer to this cause of action is sustained.

2. Seventh C/A for Intentional Infliction of Emotional Distress

A cause of action for intentional infliction of emotional distress exists when there is (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–1051.) A defendant's conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ibid.*) And the defendant's conduct must be intended to inflict injury or engaged in with the realization that injury will result. (*Ibid.*)

As asserted in their last demurrer, defendants contend plaintiff's allegations do not amount to a cause of action for IIED because the actions alleged are too conclusory to constitute "outrageous" or intentional conduct.

In response, plaintiff highlights the allegations that have been added to the TAC. Specifically, since the Court's previous ruling, plaintiff has added that the District "knew that Plaintiff was being touched by a teacher inappropriately and was being bullied, hit, kicked, beaten. Instead of intervening or attempting to hold anyone to account, they went out of their way to make the process more difficult. Yet, they were hostile toward him and his family when they sought help. They stone walled the IEP process to address the bullying and disability concerns, prolonging and exacerbating the impact and creating a hostile environment between Plaintiff and his educators. Instead of having a safe place at school, at least with the school officials, Plaintiff was up against his peers and those who are supposed to protect him." (TAC, ¶150.)

These details continue to be overly conclusory and suggestive of failures to act rather than intentional acts.

Plaintiff refers to Casillas only in the context of "Defendants" generally and the massaging here does not rise to the level of conduct "so extreme as to exceed all bounds of that usually tolerated in a civilized community." As mentioned below with respect to battery, the allegations do not suggest Casillas had an intent to injure plaintiff and, while they suffice for battery, the allegations are inadequate with respect to IIED.

The demurrer as to the seventh cause of action is sustained.

3. Eighth C/A for Battery (Against Casillas)

A cause of action for battery requires plaintiff to show: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching. (*So v. Shin* (2013) 212 Cal.App.4th 652, 669.)

"It has long been established, both in tort and criminal law, that 'the least touching' may constitute battery. In other words, force against the person is enough; it need not be violent or

severe, it need not cause bodily harm or even pain, and it need not leave any mark.” (*People v. Mansfield* (1988) 200 Cal.App.3d 82, 88, citations omitted.) A person need not have an intent to injure to commit a battery, only the intent to commit the act. (*Ibid.*) Thus, a simple battery does not necessarily show readiness to do evil or necessarily involve moral turpitude. (*Ibid.*)

Here, plaintiff has alleged that the defendant repeatedly touched and massaged his back and shoulders, and that he was a minor incapable of consenting to such touching. Plaintiff alleges his mother did not consent on his behalf, and that a reasonable person in his position would have been offended by the touching. (TAC, ¶54.) This is sufficient to meet the pleading requirements.

Defendants argue this cause of action is unwarranted because the Court only granted leave to amend the existing cause of action and not to plead a new one. However, the cause of action is not entirely new. The previous version of the complaint labeled the ninth cause of action “Sexual Assault and Battery,” suggesting plaintiff might have been attempting to plead simple battery. Accordingly, the amendment is not outside the scope of what was permitted.

The demurrer is overruled as to battery.

IV. Motion to Strike

A. Motion

The motion seeks to strike numerous allegations including allegations requesting punitive damages against “Non-Public Entity Defendants” (Items 1, 2, and 8) , the entire “Eighth Cause of Action- Battery Against MARIA CASILLAS,” (Item 3); and various paragraphs reciting legal principles (Items 4-7).

B. Standard

The Court *may*, in its discretion and upon a motion to strike by defendant: (a) strike out any irrelevant, false, or improper matter inserted in any pleading, or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435-436.) The matter must appear on the face of the complaint, or be subject to judicial notice. (Code Civ. Proc., § 437.)

C. Discussion

1. Punitive Damages Against Non-Public Entity Defendants (Items 1, 2, and 8)

Defendants seek to eliminate the provisions of the TAC requesting punitive damages.

California Civil Code, § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civil Code, § 3294.)

A plaintiff must plead more than conclusory allegations to seek punitive damages. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042.) "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Plaintiff, as discussed above with respect to the demurrer, does not allege any particularly blameworthy act on the part of Maria Casillas. While a defendant must have intended to cause the touching involved in a battery, nothing in the complaint suggests that there was any intent to harm in Casillas' touching. Accordingly, an award for the "sake of example and by way of punishing the defendant" is not justified.

The motion to strike is granted as to items 1, 2, and 8. However, plaintiff states he can "go into more detail" (Opposition 5:14-16) so leave to amend is granted.

2.Eighth Cause of Action

As discussed above, with respect to the demurrer, the Court does not agree with defendants that the scope of amendment precluded plaintiff's adjusting of the eighth cause of action. The motion is denied as to this item (Item No. 3).

3.Discussion of Legal Authorities

As to the various citations to legal authority and plaintiff's narrative concerning the import of these authorities, the motion is denied. While there may be little need for such text, the Court does not necessarily view the text as improper, false, or irrelevant. As pointed out in the plaintiff's opposition, this is complaint against a public entity and therefore may require the pleading and proving of certain mandatory duties pursuant to statute. Accordingly, the motion is denied as to the quoted material (Items 4-7).

7. 9:00 AM CASE NUMBER: C24-00451
CASE NAME: JAXSON JULIAN VS. MARIA CASILLAS
***HEARING ON MOTION IN RE: STRIKE 3RD AMENDED COMPLAINT**
FILED BY: CASILLAS, MARIA
TENTATIVE RULING:

Please see Line 6.

8. 9:00 AM CASE NUMBER: C24-01376
CASE NAME: XUE XIE VS. SHENG LIN
***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION OF SHENG PING LIN**
FILED BY: XIE, XUE FEN
TENTATIVE RULING: